

**23CMCV01379 23CMCV01379**

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-08-28

Motion: PLAINTIFF'S MOTION TO FILE MOTION UNDER SEAL

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Case Number: 23CMCV01379 Hearing Date: August 28, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

ORLANDO GARCIA,

Plaintiff,

vs.

NADAR

LUCKY 7 INC.,

Defendant.

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CASE NO: 23CMCV01379

[TENTATIVE]

ORDER RE: PLAINTIFF'S MOTION TO FILE MOTION UNDER SEAL

Dept.

A

DATE:

August 28 28, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 08/25/2023

DISPOSED:

08/22/2025

MOVING

PARTY: Plaintiff Orlando  
Garcia

RESPONDING

PARTY: None

## 1. Background

This is an ADA compliance action. Plaintiff Orlando Garcia ("Plaintiff") alleged that defendant Nadar Lucky 7 Inc. ("Defendant") owned the property located at 11508 Wilmington Ave., Los Angeles, CA (the "Property") at all relevant times. Plaintiff alleged that the Property was noncompliant with ADA requirements.

On August 22, 2025, the court dismissed this action in connection with a settlement agreement and retained jurisdiction pursuant to Code of Civil Procedure § 664.6.

## 2. Discussion

Plaintiff moves to file his settlement agreement with Defendant under seal in connection with his motion to enforce the settlement agreement. Plaintiff contends that the agreement contains confidential financial information. Defendant does not oppose this motion.

Courts evaluate motions to seal documents under California Rules of Court, rules 2.550 and 2.551, which codify requirements for ordering sealing of court documents. The requirements were stated in *NBC Subsidiary (KNBC-TV), Inc. v. Superior Court* (1999) 20 Cal.4th 1178.

Among the requirements articulated by California Rules of Court, rules 2.550 and 2.551 are that to grant a motion to seal court documents, the court must expressly find that: (1) an overriding interest exists that overcomes the right of public access to the record; (2) the overriding interest supports sealing the records; (3) a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) the proposed sealing is narrowly tailored; and (5) no less restrictive means exist to achieve the overriding interest. (Cal. Rules

of Court, Rule 2.550(d); NBC Subsidiary, *supra*, 20 Cal.4th at pp. 1217—1218.)

A confidential

settlement agreement may qualify for sealing. However, a settlement agreement that contains a confidentiality clause does not qualify for sealing after all references to financial and other confidential information have been redacted.

(Universal City Studios, Inc. v. Superior Court (2003) 110 Cal.App.4th 1273, 1283-1284 (Universal).)

Plaintiff

moves to seal the entire settlement agreement, rather than solely any portions relating to the financial information that Plaintiff contends is confidential. Plaintiff has failed to lodge the settlement agreement provisionally under seal as required by the California Rules of Court for the court's review and consideration. Nonetheless, even if the court were to accept that the redacted information in the filed settlement agreement is confidential, Plaintiff's motion to seal is not narrowly tailored as required by Universal.

Furthermore, unlike

in Universal, Plaintiff has not demonstrated that an overriding interest exists that supports sealing the records. In Universal, the moving party's financial records were subject to a contractual obligation not to disclose, which the court found to constitute an overriding interest. (*Id.* at p. 1283.) Here, by contrast, Plaintiff simply contends that disclosure of redacted information "would reveal confidential financial and negotiated terms that were material to the parties' resolution of this dispute." This is insufficient to satisfy the factors set forth in NBC Subsidiary.

The court will

therefore deny Plaintiff's motion to file the settlement agreement under seal.

### 3. Conclusion

Based on the

foregoing, the court DENIES Plaintiff's motion to file the settlement agreement under seal.

Plaintiff is ordered to give notice.

IT IS SO ORDERED.

DATED: August 28, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court